

Sarvendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 17 September 2014 · Criminal Misc. Writ Petition No. 16290 of 2014 · Criminal Misc. Writ Petition No. 16290 of 2014 · **FIR under s.135 not quashed; CrPC 41-A arrest; compounding left open**

HEADNOTE

Allahabad High Court refused to quash an FIR under Section 135 of the Electricity Act, 2003, holding that it disclosed a cognizable offence. Noting that the alleged offence is punishable with imprisonment not exceeding seven years and is compoundable, the Court directed that any arrest must comply with Section 41(1)(b) read with Section 41-A CrPC, and left the petitioner to compounding under the Electricity Supply Code, 2005 and Section 152 of the 2003 Act.

FACTUAL SUMMARY

Sarvendra Singh approached the Allahabad High Court to quash FIR dated 15 June 2014, Case Crime No. 588 of 2014, registered under Section 135 of the Electricity Act, 2003 at Police Station Kuthond, District Jalaun. He had not been arrested. Counsel submitted that the alleged offence carried imprisonment not exceeding seven years, that arrest should not be mechanical, and that the offence was compoundable. The State and the distribution licensee were represented.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR, arrest safeguards and compounding

HOLDING

An FIR under Section 135 that discloses a cognizable offence will not be quashed. Because the offence does not attract a sentence of more than seven years, any arrest must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE S.135 OFFENCE WOULD BE COMPOUNDED ON THE FACTS

No compounding order was made; the petitioner was left to apply under the Supply Code, 2005 and s.152. ¶ 1